

Data Protection Authority
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
The State Secretary for Infrastructure and Water Management
P.O. Box 20901
2500 EX THE HAGUE
Date

February 17, 2022

Our reference

z2021-17854

Your letter dated

December 20, 2021

Your reference

IENW/BSK-2021/337937

Subject

Advice on draft decision regarding work-related mobility of persons

Dear Ms. Heijnen,

In your letter dated December 20, 2021, the Data Protection Authority (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft decision to amend the Environmental Activities Decree and the Environmental Decree in relation to limiting carbon dioxide emissions from work-related mobility (hereinafter: the draft).

The draft lacks the legal basis for collecting mobility data from employees. The AP objects to this point in the draft and advises against continuing the procedure unless the objection is resolved.

Scope of the draft

This draft decision provides, among other things, for an annual obligation for employers with 100 or more employees to provide data on the journeys employees make in connection with their work (both commuting and business mobility).¹ This data, which must be provided to the Environmental Service via an electronic facility at the Netherlands Enterprise Agency (RVO), consists of aggregated data that, according to the explanatory memorandum, cannot be traced back to individual persons. However, to produce this data, employers must first collect personal data from employees. This includes data on the number of business and commuting kilometers traveled, the type of transport used², and the type of fuel or energy of the transport used³. The employer must total the collected data by transport modality and type of fuel.

The data that must be reported to the Environmental Service can partly be based on data from the company administration.⁴ For obtaining data that is not available, surveys, counting at the entrance or parking lot, registration via apps used for commuting reimbursements, or adding extra columns on the expense claim form for the transport modality used and the type of fuel can be utilized.

The purpose of the reporting is to reduce CO2 emissions.

Advice

Article 18.15 of the Environmental Activities Decree obliges employers with 100 or more employees to annually provide the Environmental Service with data on the journeys employees make in connection with their work. However, to produce these - aggregated - data, employers must first collect personal data from employees.

A legal basis is required for the processing of personal data (Article 6 GDPR). The explanatory memorandum incorrectly assumes that Article 18.15 of the Environmental Activities Decree obliges

employers to collect personal data from their employees, which would allow this processing to be justified under Article 6, paragraph 1, subparagraph c, GDPR. However, Article 18.15 of the Environmental Activities Decree only obliges the provision of aggregated data to the Environmental Service. A legal basis for collecting the underlying mobility data of employees is absent in the draft.

The AP advises that this legal basis be included in the draft.

2 car, motorcycle, moped, bicycle, public transport.

3 petrol, diesel, LPG, CNG, hydrogen, electric, hybrid.

4 For example, expense claims for business trips, data on kilometers driven from leasing companies, reimbursement for commuting, etc. Companies that fall under the European Energy Efficiency Directive (Directive 2012/27/EU) can also use data they are already required to report under Article 18 of the Act on the Implementation of EU Energy Efficiency Acts in conjunction with the Energy Audit Decree.

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Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected timing of the disclosure as soon as this is known.

Sincerely,

Data Protection Authority,

Aleid Wolfsen

Chairman